

Purvanchal Vidyut Vitran Nigam Ltd. v. State of U.P. and Another

High Court of Judicature at Allahabad · Single Judge · 22 September 2025 · Criminal Appeal u/s 413 BNSS Defective No. 78 of 2025 · Criminal Appeal u/s 413 BNSS Defective No. 78 of 2025 · **Appeal dismissed as withdrawn with liberty to seek Special Court review.**

HEADNOTE

Licensee's criminal appeal under s.413 BNSS against a Special Court s.135 sentence and fine, alleged to be inadequate vis-à-vis s.126 of the Electricity Act, 2003 and Supply Code clause 6.8(c)(iii), was dismissed as withdrawn. If the Special Court's s.154 assessment is incorrect, the remedy is review before that Court, which had not been invoked.

FACTUAL SUMMARY

Purvanchal Vidyut Vitran Nigam Ltd. appealed under s.413 BNSS against the 22.10.2024 judgment of the Special Judge (EC Act), Ballia in SST No. 199 of 2018 (State v. Shri Ram Chaurasiya; Crime No. 358 of 2017, P.S. Maniyar) under s.135 of the Electricity Act, 2003. It alleged a lesser sentence and inadequate fine vis-à-vis the assessed value under s.126 read with Supply Code clause 6.8(c)(iii). Delay of 102 days was condoned. Counsel then withdrew to seek review of the Special Court's s.154 assessment.

HOLDING-UNITS

HOLDING-UNIT · EA2003::154

review of Special Court assessment

HOLDING

If the assessment arrived at by the Special Court under s.154 of the Electricity Act, 2003 is found incorrect, the remedy of review before that Court is to be availed. A licensee's High Court criminal appeal under s.413 BNSS challenging inadequate sentence and fine (pleaded with s.126 and Supply Code 6.8(c)(iii)), where no such review had been filed, was dismissed as withdrawn with liberty to seek that review. ¶ 4-5

PRINCIPLE TAGS

opportunity-before-final-assessment Licensee's criminal appeal under s.413 BNSS against a Special Court s.135 sentence and fine, alleged to be inadequate vis-à-vis s.126 of the Electricity Act, 2003 and Supply Code clause 6.8(c)(iii), was dismissed as withdrawn.. ¶ 4-5

s135-arrest-safeguards-and-compounding-remedy Licensee's criminal appeal under s.413 BNSS against a Special Court s.135 sentence and fine, alleged to be inadequate vis-à-vis s.126 of the Electricity Act, 2003 and Supply Code clause 6.8(c)(iii), was dismissed as withdrawn.. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE SPECIAL COURT AWARDED A LESSER SENTENCE OR INADEQUATE FINE UNDER S.126 EA 2003 READ WITH SUPPLY CODE 6.8(C)(III)

Appeal withdrawn; merits not examined. ¶ 4-5

NOT DECIDED — CORRECTNESS OF THE SPECIAL COURT'S S.154 ASSESSMENT

Left to review before the Special Court. ¶ 4-5

